

# HOUSE . . . . . No. 2746

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Brian M. Ashe***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to retirement benefits for Mary Donna Nodurf.

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PETITION OF:

| NAME:                    | DISTRICT/ADDRESS:                       | DATE ADDED:      |
|--------------------------|-----------------------------------------|------------------|
| <i>Brian M. Ashe</i>     | <i>2nd Hampden</i>                      | <i>1/13/2025</i> |
| <i>Jacob R. Oliveira</i> | <i>Hampden, Hampshire and Worcester</i> | <i>1/22/2025</i> |

# HOUSE . . . . . No. 2746

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By Representative Ashe of Longmeadow, a petition (accompanied by bill, House, No. 2746) of Brian M. Ashe and Jacob R. Oliveira for legislation relative to retirement benefits for Mary Donna Nodurf. Public Service.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 2428 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to retirement benefits for Mary Donna Nodurf.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Notwithstanding any general or special law to the contrary the  
2   Massachusetts Teachers' Retirement Board is hereby authorized and directed to allow Mary  
3   Donna Nodurf to purchase up to 4 years of creditable service for the purposes of maternity leave  
4   service; provided that it does not exceed the 80 percent admitted and that no credit shall be  
5   allowed unless Mary Donna Nodurf, has paid to the teachers' retirement system, in one sum,  
6   upon such terms and conditions as the board may prescribe, an amount equal to the deductions  
7   that would have been withheld had she continued in service, as determined by the board's rules  
8   and regulations, together with buyback interest.

9           SECTION 2. If Mary Donna Nodurf fails to make payment within one year of the  
10 effective date of this act, the teachers' retirement system shall recalculate her invoice using the  
11 system's actuarially assumed investment rate of return.

12           SECTION 3. Upon completion of payment, the teachers' retirement system shall  
13 recalculate Mary Donna Nodurf's retirement benefit including her maternity leave purchase  
14 effective as of the date the system received Mary Donna Nodurf's payment.